

MEMORANDUM OF AGREEMENT # _____**BETWEEN CITY OF CHEYENNE, A MUNICIPAL CORPORATION****And****Arts Cheyenne, a 501(c)3 Non-Profit Organization**

THIS MEMORANDUM OF AGREEMENT made this _____ day of _____, 2022, by and between Arts Cheyenne (ARTS CHEYENNE) and City of Cheyenne (the City), provides that:

WHEREAS, Arts Cheyenne was formed as a non-profit entity in 2008 for the purpose of promoting Cheyenne as a vibrant arts community; and

WHEREAS, Resolution No. 5954 designates Arts Cheyenne as the Local Arts agency for the City of Cheyenne; and

WHEREAS, Arts Cheyenne plans to host events in the West Edge in the summer of 2022 to further community involvement and education on West Edge development; and

WHEREAS, the City, has adopted plans in 2014, 2016, and 2018 stating their commitment to the redevelopment of the West Edge; and,

WHEREAS, the City, as implementation steps to the adopted plans, has created the Urban Use Overlay in the Unified Development Code and plans to apply it to the West Edge to foster redevelopment; and,

WHEREAS, the City has determined that the summer events hosted by Arts Cheyenne are important implementation steps of the West Edge vision and has determined that this project is deserving of public support.

NOW, THEREFORE, the City and Arts Cheyenne in consideration of the mutual covenants and promises set forth herein hereby agree, covenant and represent as follows:

Terms

1. The City grants permission to Arts Cheyenne to paint, construct, or install public art in the City Right-of-Way. The public art may include, but is not limited to painted crosswalks, street murals, kinetic art, or QR Codes directing citizens to information on future development.

2. Prior to the painting, construction, or installation of said public art, Arts Cheyenne shall obtain a Right-of-Way Encroachment Permit from the City Engineer. The application for the permit will contain a traffic control plan created by a licensed contractor that will specify any road closures or rerouting necessary to paint, construct, or install public art.

3. Arts Cheyenne shall only paint, construct, or install public art as approved by the City Engineer by the Engineer Plan Review Process. This will be a plan sheet at minimum showing proposed locations, layout, pavement markings, parking, and drive lanes.

4. Arts Cheyenne and their artists shall complete all painting, construction, or installation of public arts in accordance with the current edition of the City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings.

5. Arts Cheyenne may make any necessary repairs to the public art, including, but not limited to, restoring a damaged portion of the public art. Any said repairs may require an additional Right-of-Way Encroachment Permit or Engineering Plan Review. City is not responsible for any maintenance of public art installed by Arts Cheyenne.

6. The City reserves the right to inspect public art installations during construction and at the time of completion. Should the City find the installations do not meet the approved plans or specifications, the City may remove said art at Arts Cheyenne's expense.

7. The City reserves the right to remove any public art installed in the right-of-way for maintenance or other actions the City deems necessary. Removal due to maintenance or aforementioned actions shall be at the City's expense. The City will not be held responsible for replacement of public art.

8. The Artist(s) warrants and represents that the renderings and the Public Art have never heretofore been published or copied and that the Artist(s) is the sole owner of all rights therein, including but not limited to the right to prevent the making and dissemination of copies, and the right to obtain statutory copyright extending to him/her the exclusive right to manufacture and sell the above items and copies for a full statutory term and renewal thereof.

9. Arts Cheyenne shall not assign or attempt to assign, directly or indirectly, any of its rights under this Agreement or under any instrument referred to herein without the prior written consent of the City.

10. Neither this Agreement nor any provision hereof may be changed, waived, discharged, or terminated orally and may only be modified or amended by an instrument in writing, signed by the parties hereto.

11. All rights, powers, and remedies herein given the City are cumulative and not alternative, and are in addition to all other statutes or rules of law. Any forbearance or delay by the City in exercising the same shall not be deemed to be a waiver thereof and the exercise of any right or partial exercise thereof shall not preclude the further exercise thereof and the same shall continue in full force and effect until specifically waived by an instrument in writing executed by the City. All representations, warranties, covenants and the provisions hereof shall be binding upon Arts Cheyenne, its successors and assigns and inure to the benefit of the City, its successors and assigns.

12. All notices shall be in writing and shall be deemed to have been sufficiently given or served when sent by certified mail when addressed to the parties at the addresses set forth below. Such addresses may be changed by notice to the other party given in the same manner.

13. This Agreement and all covenants, agreements, representations and warranties made herein shall survive the execution of this Agreement and shall continue in full force and effect so long as the agreement is outstanding.

14. If any provision of this Agreement is held invalid, such invalidity shall not affect other provisions of this Agreement which can be given effect without the invalid provisions and, to this end, the provisions of this Agreement are hereby declared severable.

15. This Agreement expires two years from the date of signing by all parties or when public art ceases to exist due to natural causes or pavement maintenance operations. Extensions may be granted upon written request if agreed upon by the City and Arts Cheyenne.

16. City does not waive its governmental immunity, as provided by any applicable law including W.S. 1-39-101 et seq., by entering into this Agreement. Further, City fully retains all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement.

17. Each Party to this Agreement shall assume the risk of any liability arising from its own conduct. Neither Party agrees to insure, defend, or indemnify the other.

AGREED TO AND ENTERED INTO BY THE UNDERSIGNED PARTIES THIS ____ Day of _____, 2022.

APPROVED:
City of Cheyenne, a Municipal Corporation

PATRICK COLLINS, MAYOR

(S E A L)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Organization

Arts Cheyenne

BILL LINDSTROM, EXECUTIVE DIRECTOR